

HOUSE No. 2665

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to access to constitutional rights.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/7/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/28/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/25/2025</i>

HOUSE No. 2665

By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 2665) of Joseph D. McKenna and David F. DeCoste relative to the issuance of licenses for firearms. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2375 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to access to constitutional rights.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to ensure timely constitutional access to acquire a firearms identification card or a license to carry firearms, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 129B of Chapter 140 of the General Laws are hereby amended in
2 section (2) by deleting the words “provided, however, that the taking of fingerprints shall not be
3 required in issuing the renewal of a card if the renewal applicant's fingerprints are on file with
4 the department of state police” and inserting in place thereof the following; “provided, however,
5 that the taking of fingerprints shall not be required in issuing or renewing a card if the applicant's
6 fingerprints are on file with the department of state police or if such situation deemed reasonable

7 by the licensing authority or the Executive Office of Public Safety shall prevent such fingerprints
8 from being collected.”

9 SECTION 2. Section 129B of Chapter 140 of the General Laws are hereby amended in
10 section (7) by deleting the word “, fingerprint”

11 SECTION 3. Section 131 of Chapter 140 of the General Laws are hereby amended in
12 section (e) in line 8 by adding after the word “firearms” the following: “,provided, however, that
13 the taking of fingerprints shall not be required in issuing or renewing a card if such situation
14 deemed reasonable by the licensing authority or the Executive Office of Public Safety shall
15 prevent such fingerprints from being collected.”

16 SECTION 4. Section 131 of Chapter 140 of the General Laws are hereby amended in
17 section (g) by deleting the word “, fingerprint”

18 SECTION 5. Section 131 of Chapter 140 of the General Laws is hereby amended in
19 section (l) by deleting the words “The taking of fingerprints shall not be required in issuing the
20 renewal of a license if the renewal applicant's fingerprints are on file with the department of the
21 state police.” and inserting in place thereof the following; “The taking of fingerprints shall not be
22 required in issuing or renewing a license if the applicant's fingerprints are on file with the
23 department of the state police, or if such situation deemed reasonable by the licensing authority
24 or the Executive Office of Public Safety shall prevent such fingerprints from being collected.”